

ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

W.P. No.10298 of 2022

Tanveer Ahmad and another **Versus** Addl. District Judge and others

Sr. No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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21.2.2022

Ch. Muhammad Hanif, Advocate for petitioners.
Syed Shadaab Hussain Jafferi, Addl. Advocate-General
Punjab.

Petitioners in this Constitutional petition have assailed orders dated 18.5.2019 and 22.11.2021 of the courts below whereby application under Order IX, Rule 7, C.P.C. for setting aside of ex parte proceedings order was allowed and civil revision thereagainst was dismissed.

2. Case set up in the instant petition is that the petitioner filed a suit titled “Tanveer Ahmad and another v. Province of Punjab, etc.” against respondent Nos. 3 to 13 wherein respondents Nos. 8 to 13 (defendant Nos. 6 to 11 in the suit) were proceeded against ex parte on 07.12.2018. An application for setting aside of ex parte proceedings order was moved by the said respondents which after contest, was allowed. The petitioner challenged the order in revision which could not succeed. The two orders are now assailed in this Constitutional petition.

3. Main stance of the petitioners’ learned counsel is that the application could have been filed on the next date of hearing after the said respondents were proceeded against ex parte which having not been filed,

was not within limitation; the Rule 7 of Order IX, C.P.C. was misinterpreted and misapplied; the application was hopelessly barred by time; no “good cause” was shown for setting aside of the ex parte proceedings order and that the courts below erred in law and committed material irregularity in allowing the application particularly when the respondents were fully aware of the ex parte proceedings order and did not enter appearance despite knowledge. Reference was made to the order passed on the application for temporary injunction which the petitioners challenged in appeal unsuccessfully and thereafter in Constitutional petition bearing W.P. No. 255006 of 2008 which was allowed on 22.1.2019; and it was argued that after the grant of Order for temporary injunction in the Constitutional petition, the respondent Nos. 8 to 13 (defendant Nos. 6 to 11) brought the application for setting aside of ex parte proceeding order dated 07.12.2018 and that this act was not bona fide and that there was no justification to ignore limitation.

4. On careful consideration of the material documents and proceedings of suit as annexed with the instant petition it is revealed that ex parte proceedings order was passed on 07.12.2018 while the application under Order IX, Rule 7, C.P.C. for setting aside of the same was moved by respondent Nos. 8 to 13 on 23.1.2019. Rule 7 of Order IX C.P.C. contemplates that where the court adjourned the hearing of the suit ex parte, the defendant at or before such hearing and

assigning a “good cause” for his previous non-appearance may upon such terms as the court directs as to costs or otherwise, be heard in answer to the suit as if he had appeared on the date fixed for his appearance. The provision of Order IX, Rule 7, C.P.C. has been considered in number of cases. In “Manzoor Ahmad Bhatti, Advocate v. Road Transport Corporation, West Pakistan through Secretary of the Corporation and another” (PLD 1973 Lah. 659) it was observed that to the effect that the opening phrase of Order IX, Rule 7, C.P.C. “where the court had adjourned the hearing of the suit ex parte” is wide enough to include not only the adjournment as a matter of right or the first adjournment in the case where the summons had been issued for framing of issues only; but also includes successive adjournments given under Order XVII, Rule 1, C.P.C. and that terminus a quo for an application to set aside the ex parte order will be the date when the case is actually heard. It was observed as follows:

“...The terminus a quo for an application to set aside the ex parte order will be the date when the case is actually heard. This also appears to be the view of the Supreme Court of India as is clear from the following observations in the case of Arjan Singh Mohinder Kumar (A I R 1964 S C 993):

"The entirety of the evidence of the plaintiff might not be concluded on the hearing day on which the defendant is absent and something might remain so far as the trial of the suit is concerned for which purpose there might be a hearing on an adjourned date. On the terms of Order IX, rule 7 if the defendant appears on such adjourned date and satisfies the Court for showing good cause for non-appearance on the previous day or days, he might have the earlier proceedings recalled "set the clock back"-and have the suit heard in his presence."

The word "days" which I have underlined* shows that in the opinion of the Supreme Court of India

successive adjournments were within the ambit of Order IX, rule 7.

The next question is whether the last date of hearing is the date when the judgment is pronounced or some earlier date. This depends upon the interpretation of word "hearing". The word "hearing" has been defined in a number of authorities as the date on which either the evidence is recorded, or the arguments are heard, or other steps are taken by the Court towards further proceedings in the case-See Mat. Barkat Bibi v. Fateh Ali (PLD 1949 Lah. 432), Messrs. Ghulam Farid and another v. The Central Bank of India Ltd., Lahore (PLD 1954 Lah. 575), Sh. Ghulam Mujtaba v. Noor Muhammad Khan (PLD 1964 BJ 85). Writing or pronouncement of judgment is the ultimate function of the Court alone and stage for it comes after the hearing of a case is concluded. The last date of hearing will be the date when the Court becomes competent to pronounce judgment. An application under Order VI rule 7 can be made at any time before this date. This wider interpretation harmonizes with and advances the object of the rule and finds support from the established proposition that rule 7 does not debar a defendant from appearing and participating in the proceedings for all future stages and although an absentee defendant is not relegated to the position he would occupy if he had appeared unless he shows good cause for non-appearance he cannot be estopped from participating in the proceedings, Ghulam Muhammad v. Mst. Irshad Begum (PLD 1964 Lah. 782), Habib Ismail Bajwa v. Kh. Ghulam Mohy-ud-Din (PLD 1970 Lah. 428).

Order IX, rule 7 does not as such provide for a period of limitation. There are two rules which enable a defendant to apply for setting aside the ex-parte proceedings taken against him. During the pendency of the suit such an application is competent under rule 7 while after the passing of the ex parte decree application is maintainable under rule 13. Up to the stage when the case becomes ripe for pronouncing judgment, Order IX, rule 7 would apply and once the case has become ripe for this purpose the defendant is to wait for the passing of the ex parte decree and he can approach the Court under rule 13. It would be an anomaly if, on the one hand, it is held that without getting the ex parte order set aside the defendant can participate in proceedings up to the time when the case becomes ripe for the pronouncement of the judgment and, on the other hand, rule 7 is interpreted as debarring the defendant from making an application for setting aside the ex parte order after the expiry of the first adjourned date. In majority of cases such participation may not be of any advantage to the defendant unless the Court recalls its earlier order and sets the clock back."

5. In “Police Department through Deputy Inspector General of Police and another v. Javaid Israr and 7 others” (1992 SCMR 1009) it was observed by the Supreme Court of Pakistan by conjunctive reading of Rules 6 and 7 of Order IX, C.P.C. as under:

“...it is amply clear that if the defendant in spite of service does not appear on the day fixed in the summons, the Court may proceed with the suit notwithstanding the absence of defendant and if he, later on, is able to assign good cause for his previous non-appearance, he can be relegated to the stage at which he was proceeded ex parte, which nowhere lays down that the defendant shall be debarred to take part in the subsequent proceedings if either he is not able to show good cause for the revival of the earlier proceedings or he does not feel a necessity to undo whatever is already done in the case, and simply stands in need of contesting the suit from the later stage. Since the provisions of Order IX, C.P.C. have been made applicable to adjourned hearing under Order XVII, therefore, there may be cases in which setting aside of the earlier proceedings may not be felt necessary, for instance, if the defendant has already filed written statement and list of witnesses and is unable to put in appearance on subsequent date, his mere joining the proceedings can serve the purpose to contest the suit by cross-examining the witnesses of the opposite side and producing his own evidence. Even if he has not filed written statement, he may be in a position to secure the dismissal of the suit by raising an objection, orally, to the jurisdiction of the Court, limitation, etc. In the absence of any clear provisions in the Code of Civil Procedure prohibiting the appearance and taking part in the proceedings by the defendant proceeded ex parte, there can be no legal bar to allow him to defend his rights. It is the right of every defendant and also the principle of natural justice, to be given a chance of hearing before any order is passed against his interest. The rules of procedure are meant to advance justice and preserve right of litigants, and they are not to be interpreted in a way as to hamper the administration of justice. As such, in the absence of any clear prohibition in the scheme of civil procedure denying the defendant of his right to take part at any stage of the proceedings after the order of ex parte proceedings, he can appear and defend the suit if somehow his application for setting aside the ex parte proceedings does not succeed on account of his failure to show good cause for his previous non-appearance...”

6. Reference can also be made to the case of “Farid Ud Din Masood v. Air Marshal (Rtd.) Muhammad

Asgar Khan and 5 others” (1993 MLD 227) wherein it was observed to the effect that the application for setting aside of ex parte proceedings order was governed by Article 181 of the Limitation Act, 1908 and that such application could be filed at any time and by any date prior to the passing of ex parte decree and that law favours adjudication on merits and technicalities shall not be allowed to stand in the way of administration of justice and that instead of dealing technical knockout cases should be decided after giving opportunity of being heard to both parties. In “Messrs Landhi Industrial Trade Estate Ltd., Karachi v. Government of West Pakistan through Excise and Taxation Officer “N” Division, Karachi” (1970 SCMR 251) it was observed to the effect that rules of procedure laid down in C.P.C. were not intended for retarding justice on mere technicalities.

7. Applying the rule in the cases supra it is plain that in the instant case the objection as to the limitation qua the application under Order IX, Rule 7, C.P.C. was legally unsustainable inasmuch as the application was filed on 23.1.2019 for setting aside of the ex parte proceedings order dated 07.12.2018 i.e. within the time prescribed by Article 181 ibid. and also before the final hearing of the suit. It is also manifest that policy of law enjoins avoidance of technicalities while considering an application for setting aside an ex parte proceedings order; particularly when no material proceedings occurred after the order. Generous consideration was

liable to be extended to afford parties opportunity to obtain decision on merits rather than declining hearing on technical grounds.

8. The courts below were well within their jurisdiction to allow the application so as to ensure decision on merits and in doing so no error of law was made. It appears from the contents of this petition that in the main suit, respondent Nos. 6 to 11 were not personally served any process nor were preconditions prescribed by Rules 17, 18 and 19 of Order V, C.P.C. fulfilled and in a mechanical way an order for service through publication was issued whereafter the ex parte proceedings order was made against respondent Nos. 6 to 11.

9. It is settled rule that without diligent and honest compliance with the prerequisites of Order V, Rules 15 to 19, C.P.C. and in the absence of any legally admissible report duly attested by witnesses and verified on oath by the process server and without recording the statement of the process server to verify the manner in which the efforts were made for procuring the personal service or a proper declaration by the court as to why the service in the ordinary mode and manner could not be effected, the passing of an order of substituted service in a mechanical manner has never been encouraged or considered lawful or effective nor such service can be deemed to be legal for all intents and purposes. Reference can be made to “Syed Muhammad Anwar, Advocate v. Sheikh Abdul Haq” (1985 SCMR 1228).

10. In view of the reasons recorded hereinabove and also those considered by the courts below, no error of law was found to exist in the impugned orders which are in accordance with law and encompass larger interest of justice. No interference is therefore warranted in exercise of its extraordinary and discretionary jurisdiction by this Court.

11. As upshot of the above instant petition being meritless is **dismissed**.

(RASAAL HASAN SYED)
JUDGE

APPROVED FOR REPORTING.

JUDGE

*Imran**